

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE 1 OF 8 PAGES	
2. AMENDMENT/MODIFICATION NUMBER 0001		3. EFFECTIVE DATE 28 APR 2026		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable) 565949, 565954, 565963	
6. ISSUED BY W071 ENDIST KANSAS CITY CONTRACTING DIV CORPS OF ENGINEERS, 601 E 12TH ST KANSAS CITY, MO 64106-2896 UNITED STATES NATHANIEL LEYBA, EMAIL: NATHANIEL.J.LEYBA@USACE.ARMY.MIL TELEPHONE: (816)389-2281		CODE W912DQ		7. ADMINISTERED BY (If other than Item 6) SCD: PAS:		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER W912DQ26BA005	
				☒		9B. DATED (SEE ITEM 11) 23 APR 2026	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:
 (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted;
 or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER.
 If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)
 SEE SECTION G - CONTRACT ADMINISTRATION DATA

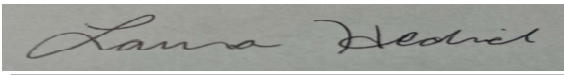
**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)
 The solicitation is amended to change the site visit, bidder inquiry, and bid due date. Also, RFO Clause 52.222-90 is added.

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print) LAURA HEDRICK	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA 	16C. DATE SIGNED 28 APR 2026
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

Section 00 00 00 - Procurement and Contracting Requirements

The following changes have been made:

INFORMATION	FROM	TO
Response Due Date	26 May 2026	02 Jun 2026

Section 00 21 00 - Instructions

Miscellaneous text in this section has been modified to:

SUBMISSION REQUIREMENTS

All bids are due by: SEE BLOCK 13, on front page.

The Virtual bid opening will begin at the DATE AND TIME specified in Box 13 A.

Electronic bids are REQUIRED. Mailed and hand-delivered bids are NOT ALLOWED.

The Contractor is required to ensure that the bid package is legible and complete. Bid bonds shall be copied and scanned so that all required raised seals are legible.

This requirement will be synopsized and solicited, and bids will be received, through the Procurement Integrated Enterprise Environment (PIEE) System Solicitation Portal. In order to submit a bid for this requirement through the PIEE Solicitation Portal, Contractors will first need to register for the PIEE 'Proposal Manager' role.

How to Register:

1. Navigate to <https://wawf.eb.mil/>
2. Select Register [topright]
3. Select Vendor

4. Create a User ID and Password and follow the prompts [next]
5. Create Security Questions [next]
6. Complete your User Profile Information [next]
7. Complete your Supervisor or Approving Official Information [next]
8. Complete Roles -Step 1. Select SOL-Solicitation, Step 2. Select Proposal Manager, Step 3. Click Add Roles, Step 4. Fill in your Location Code (CAGE Code) [next]
9. Provide a justification for your registration [next]
10. Follow the remaining prompts to submit your registration

To learn more about the PIEE Solicitation Portal and for training/instructions on submitting your bid, please visit the Web Base Training Page below: <https://pieetraining.eb.mil/wbt/xhtml/wbt/sol/solicitation/proposals.xhtml>

This IFB will result in one Firm-Fixed-Price contract.

Submit one (1) copy of the following in your bid package:

1. Bid schedule - complete with your bid amount
2. Supplemental Bid Schedule - complete by fully entering all amounts
3. Ensure all Amendments are acknowledged
4. Bid Bonds - (Copied with raised seal is legible) required with your submission
5. Provisions/clauses are filled out that have not been acknowledged in SAM registration
6. Field Office Overhead shall be selected per specification SECTION 01 30 00 Paragraph 1.16
7. Ensure Bid is reviewed and signed by a Principal of your company with authority to do so

Bid Opening

The bid opening will be held electronically. There will be a conference phone line available for all who are interested in attending the bid opening. The following information will be needed if you would like to call in for the bid opening:

Microsoft Teams Link: <https://dod.teams.microsoft.us/meet/993843063329?p=oJVRelphOWtjjsaI9>

Meeting ID: 993 843 063 329

Passcode: US3iQ9Hm

Dial in by phone: +1 601-262-2433

Phone conference ID: 346 248 720#

If you have any questions, or cannot gain access to the conference line, contact Contract Specialist at (816) 389-2281.

INQUIRIES/QUESTIONS/PLANROOM FOR DRAWINGS

Prospective Bidders shall submit contracting and technical inquiries and questions concerning this solicitation document via Bidder Inquiry in ProjNet at www.projnet.org/projnet.

To submit and review bid inquiry items, Contractors will need to be a current registered user or self-register into the system. To self-register, go to the aforementioned webpage and click on Register. Select Agency: USACE, then select Site: Contractor. Complete the required fields and then click the Register button.

If you are registered, enter the Managing Agency: USACE, your email address, and the Bidder InquiryKey for this solicitation listed below, check the security box, and then click Sign in. From this page, you may view all bidder inquiries or add a new inquiry.

Bidders will receive an acknowledgement of their questions via email, followed by an answer to their questions after it has been processed by our technical team. ***Please Note: Bidders shall only submit one (1) question per inquiry. All inquiries containing multiple questions shall be rejected***

The Solicitation Number is: W912DQ26BA005

The Bidder Inquiry Key is: MBS88V-6NJ3BT

The Bidder Inquiry System will be unavailable for new inquiries after May 19, 2026, at 2PM CDT in order to ensure adequate time is allotted to form an appropriate response to inquiries and amend the solicitation, if necessary. Bidders are requested to review the specification in its entirety, and review the Bidder Inquiry System for answers to questions prior to submission of a new inquiry.

The telephone number for the Call Center is (833) 389-1097 or (217) 367-3273. Email to: staff@projnet.info.

Section 00 70 00 - Conditions of the Contract

Additional Information/Notes

The following clauses were added:

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	Apr 2026		

Section 00 73 00 - Supplementary Conditions

Miscellaneous text in this section has been modified to:

Site Visit

An organized site visit has been scheduled for:

7 May at 10am

Participants will meet at-

1st Meeting Location Howard County Levee District #4

Farm operation located on the Northside of the MO State Highway 40. From Northside of Missouri River Bridge at Boonville travel along State Highway 40 for approximately 3.0 miles to Site Meeting Location.

Approximate GPS Lat. 39.004305 Long. -92.705627. See Site Showing Meeting Map

2nd Meeting Location Saline County Levee District #2

Road Intersection/parking area beside levee. From MO State Highway 41 in Miami, Missouri along South Side of the Missouri River Bridge travel approximately 4.4 miles East to Brunswick Road turn North (Left) and travel another approximately 2.3 miles to site visit meeting location.

Approximate GPS Lat. 39.369953 Long. -93.146199. See Site Showing Meeting Map

3rd Meeting Location Ray Carroll Levee District

Graveled parking lot along Highway J approx. 1 mile south of the town of Hardin, Missouri on the Hardin Conservation Area. Site Meeting Location in the MDC parking lot. It is strongly recommended for the interested parties to bring their own UTVs or ATVs to access the construction sites on this day.

Approximate GPS Lat. 39.254158 Long. -93.834101. See Site Showing Meeting Map

Physical Data

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations.

(b) Weather conditions: Each bidder should satisfy himself/herself as to hazards likely to arise from weather conditions before submitting his/her bid. Complete weather records and reports may be obtained from the local National Weather Service Office.

(c) Transportation facilities: Each bidder should obtain necessary data as to access highway and railroad facilities before submitting his/her bid. The unavailability of transportation facilities shall not become a basis for claims for damages or extension of time for completion of work.

Commencement, Prosecution, and Completion of Work

The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 365 Calendar days. The time stated for completion shall include final cleanup of the premises.

RFO provision 52.229-11 and RFO clause 52.229-12

RFO provision 52.229-11 and RFO clause 52.229-12 are included in this solicitation. This provision and clause concern the imposition of a 2 percent Federal excise tax withholding on any resultant contract award or payment request. This rule applies to Federal Government contracts for goods or services that are awarded to foreign persons - such as foreign contractors. It implements the Department of the Treasury's final regulations published in the Federal Register at 81 FR 55133 on August 18, 2016, under section 5000C of the Internal Revenue Code relating to

the 2 percent tax on payments made by the U.S. Government to foreign persons pursuant to certain contracts.

Pursuant to the RFO 52.229-3 Federal, State, and Local Taxes, taxes imposed under 26 U.S.C. 5000 C may not be included in the contract price or reimbursed.

Exemptions from this excise tax must be claimed by an Offeror when it submits, with its offer, a U. S. Department of Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/W14. If not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent on each contract payment. Failure to submit an IRS Form W-14 with each payment request will also result in an automatic withholding of 2 percent from the payment request.

When filling out the IRS Form W-14 the following information may be used to complete Part I, Lines 6 and 7.

Line 6 Contract/reference number: W912DQ26BA005

Line 7 "Name and address of the acquiring agency":

U.S. Army Corps of Engineers, Kansas City District

ATTN: Laura Hedrick, CECT-NWK-C

Federal Building

601 E. 12th Street, RM 647

Kansas City, Missouri 64106-2896

Any exemption claimed and self-certified is subject to audit by the IRS. Any disputes concerning this tax are adjudicated by the IRS because the Section 5000C tax is a tax matter not a contract issue.

Offerors are encouraged to seek guidance from their own tax professionals for advice concerning the provision, clause, and exclusions exclusion /submission of IRS Form W-14. Additional information is also available at:

Notwithstanding the above, the USACE does not have a means of withholding this excise tax at this time. As a result, contractors are expected to comply with the instructions above and to properly complete and return the W-14 at proposal submission, and with each pay application. Whether the contractor sets the money aside for future payment to the IRS, or makes payment to the IRS, is the contractor's discretion, based on its analysis of the regulations regarding the excise tax. In the event that USACE is able to withhold during contract performance, it will notify the contractor and make such a withholding (including any catch up withholdings); no advance notice is required to the contractor prior to the withholding. Under no circumstances is USACE liable for

any tax not paid by the contractor. The contractor is liable for the tax, to the extent required by law, regardless of whether USACE makes a withholding.

RFO 29.204 expressly states that "[a]gencies merely withhold the tax (section 5000C tax) for the Internal Revenue Service (IRS). All substantive issues regarding the underlying section 5000C tax, e.g., the imposition of, and exemption from the tax, are matters under the jurisdiction of the IRS." Therefore, we cannot help you determine how the tax law applies to you. We strongly recommend that you contact the IRS and/or a tax professional should you have any questions of this nature. To be clear, this information does not constitute tax advice or a representation of your tax liability. Furnishing this information does not create liability for the USACE for any Federal, state, or local taxes applicable to the above-referenced contract or any other contract.

For submission requirements and basis of evaluation:

Executed RFO Provision 52.229-11.

Completed IRS Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, if applicable. If not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent on each payment.

WAGE RATES

Applicable Davis Bacon Act Wage Determination, MO20260001; Construction: Heavy; Modification: #1; Published Date: January 8, 2026. A hard copy will be provided upon request.

Link provided: <https://sam.gov/wage-determination/MO20260001/1>